

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2025CUCL049250: AMERICAN EXPRESS NATIONAL BANK vs GERARDO
CARMONA, et al.**

**09/23/2026 in Department 42
Motion for Summary Judgment**

Motion: Summary Judgment/Adjudication

Tentative Ruling:

The Court grants the unopposed motion for summary judgment, summary adjudication. All proposed material facts are established for purposes of this motion.

ANALYSIS

The purpose of the law of summary adjudication is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether trial is in fact necessary. A plaintiff moving for summary judgment on its own claim has the burden to produce admissible evidence on each element of a cause of action entitling him or her to judgment. This means that plaintiffs who bear the burden of proof at trial by a preponderance of evidence must produce evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not. At that point, the burden shifts to defendant "to show that a triable issue of one or more material facts exists as to that cause of action." CCP § 437c(p)(1); *S.B.C.C., Inc. v. St. Paul Fire & Marine Ins. Co.* (2010) 186 Cal.App.4th 383, 388; *LLP Mortgage v. Bizar* (2005) 126 Cal.App.4th 773, 776. Summary judgment is no longer a disfavored remedy; instead, it is "now seen as a particularly suitable means to test the sufficiency of the plaintiff's case." *Perry v. Bakewell Hawthorne, LLC* (2017) 2 Cal.5th 536, 542; *Alameda Health System v. Alameda County Employees' Retirement Assn.* (2024) 100 Cal.App.5th 1159, 1174.

The operative pleading here contains a single cause of action for breach of contract. The elements for breach of contract are: (1) parties capable of contracting, (2) mutual consent, (3) a lawful object, (4) sufficient cause or consideration, (5) plaintiff's performance or excuse for failure to perform, (6) defendant's breach, and (7) damage. (Civil Code §§ 1550, 1605; *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821; *Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 453.)

Plaintiff's established facts demonstrate that defendant applied for three credit cards, accepted the cardmember agreement for each by receiving and using the credit cards (see (Civil Code §1747.02(b))), and then refused to pay the amount accrued/owed despite a contractual obligation to do so. (See UMF 1-11.) Failure to pay on a line of credit is a material breach. Defendants did not file opposition to the motion thus failed to demonstrate a triable issue of material fact.

The motion is granted. Plaintiff to submit proposed judgment and give notice.